Vinod vs State Of U.P. And 4 Others on 7 February, 2024

Author: Rajeev Misra

Bench: Rajeev Misra

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HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2024:AHC:23308

Court No. - 5

Case :- WRIT - C No. - 45278 of 2023

Petitioner :- Vinod

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Arvind Kumar Pandey,Sangam Kumar,Vivekanand Rai

Counsel for Respondent :- C.S.C.,Sunil Kumar Singh

Hon'ble Rajeev Misra,J.
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Heard Mr. Arvind Kumar Pandey, the learned counsel for petitioner, the learned Standing Counsel for Respondents 1, 2, 3 and 4 and Mr. Sunil Kumar Singh, the learned counsel representing Respondent 5-Land Management Committee.

Perused the record.

At the very outset, the learned counsel for petitioner submits that he be permitted to implead the NOIDA authority as respondent no.6 in the cause title of the writ petition as well as the stay application appended along with the writ petition.

Prayer made by learned counsel for petitioner is not opposed by the learned Standing Counsel and the learned counsel for Land Management Committee.

It is accordingly allowed.

Let necessary amendment in the cause title of the writ petition/stay application be carried out by learned counsel for petitioner during course of the day.

Challenge in this writ petition is to the order dated 24.03.2023 passed by Respondent 4, Tehsildar (Judicial)/Assistant Collector, Tehsil Dadari, District-Gautam Budh Nagar in Case No. 6067 of 2023 (Land Management Committee Vs. Vinod), under Section 67 of U.P. Revenue Code, 2006 (Annexure 1 to the writ petition) as well as the order dated 27.09.2023 passed by Respondent 2, Additional District Magistrate (Administration), Gautam Budh Nagar in Appeal No. 520 of 2023 (Vinod Vs. NOIDA Industrial Development Authority), under Section 67(5) of U.P. Revenue Code, 2006 (Annexure-2 to the writ petition), whereby aforementioned appeal filed by petitioner against order dated 24.03.2023 has been dismissed.

Record shows that the dispute relates to Survey Plot No. 493 area 1.0250 hectares situate in village Sultanpur, Pargana & Tehsil Dadri, district Gautam Budh Nagar. The Halka Lekhpal submitted a report (RC Form-19) alleging therein that petitioner is in illegal possession and occupation over an area of 0.0200 hectares of Survey Plot No. 493 area 1.0250 hectares. Upon submission of aforementioned report, proceedings under Section 67 of U.P. Revenue Code, 2006 were initiated against the petitioner. Accordingly, Case No.6067 of 2023 (Land Management Committee Vs. Vinod) came to be registered in the Court of Respondent 4, Tehsildar (Judicial)/Assistant Collector, Tehsil Dadari, District-Gautam Budh Nagar. Notice (RC From-20) under Section 67(2) of U.P. Revenue Code, 2006 was issued to the petitioner asking him to show cause as to why an order of eviction be not passed against the petitioner and further why damages be not imposed for illegally occupying Gaon Sabha land. In response to the aforesaid show-cause notice, petitioner duly appeared in aforementioned case before the respondent no.4 and filed his objections dated 10.03.2023. Petitioner denied the report submitted by Halka Lekhapl and alleged that he is not in possession and occupation over the land in dispute. Since the petitioner had denied his possession over the land in dispute, consequently a spot inspection was ordered to be conducted. A revenue team was constituted to conduct spot inspection. The revenue team so constituted, conducted the spot inspection in the presence of the villagers and submitted its report dated 18.03.2023. As per said report, the petitioner was found to be in illegal possession and occupation over an area of 0.0200 hectares of the land in dispute i.e. Survey Plot No. 493 area 1.0250 hectares. Respondent 4, Tehsildar (Judicial)/Assistant Collector, Tehsil Dadari, District-Gautam Budh Nagar upon consideration of the material on record came to the conclusion that petitioner has failed to establish his right, title and interest over the land in dispute. Consequently, petitioner is in illegal possession and occupation of Gaon Sabha land to the extent of 0.0200 hectares. Accordingly, respondent no.4 came to the conclusion that petitioner is liable to be evicted from the land in dispute. Respondent no.4 further held that petitioner is also liable to pay damages to the tune of Rs.24,00,000/- (twenty four lacs) and execution cost of Rs.4,200/-. It thus passed the order dated 24.03.2023, whereby not only eviction of petitioner from the land in dispute was directed but also damages as mentioned

above were also imposed against the petitioner.

Feeling aggrieved by above order dated 24.03.2023, petitioner filed an appeal before the appellate authority i.e. respondent no.2-Additional District Magistrate (Administration), Gautam Budh Nagar which was registered as Appeal No. 520 of 2023 (Vinod Vs. NOIDA Industrial Development Authority), under Section 67(5) of U.P. Revenue Code, 2006. As per the memo of appeal, number of grounds were raised in challenge to the order dated 24.03.2023. However, none of the grounds raised in the memo of appeal or the submissions urged on behalf of the petitioner in support of the appeal found favour with the appellate authority. Thus respondent no.2 accordingly dismissed the appeal filed by the petitioner by passing an order of affirmance dated 27.09.2023.

Thus feeling aggrieved by above orders dated 24.03.2023 and 27.09.2023, petitioner has now approached this Court by means of present writ petition under Article 226 of the Constitution of India.

Learned counsel for petitioner submits that orders impugned in the present writ petition are manifestly illegal and without jurisdiction. Consequently, the same are liable to be quashed by this Court. Admittedly, the proceedings under Section 67 of U.P. Revenue Code, 2006 were drawn against the petitioner on the basis of report submitted by Halka Lekhpal. The Halka Lekhpal himself did not appear before respondent no.4 to prove the report so submitted by him. It is thus urged by the learned counsel for petitioner that there was no conclusive material before respondent no.4 to arrive at the conclusion that petitioner is in illegal possession and occupation over the Gaon Sabha land. The Halka Lekhpal was mandatorily required to be examined in view of the law laid down by this Court in 2023 (1) ADJ 154 Rishipal Singh Vs. State of U.P. It is then contended by the learned counsel for petitioner that from the perusal of order dated 24.03.2023 passed by respondent no.4, it is evident that a revenue team was constituted to conduct spot inspection. Accordingly, the revenue team so constituted submitted its report dated 18.03.2023. However, there is nothing on record to show that spot inspection was conducted by the revenue team in presence of the petitioner nor any member of the revenue team who had participated in spot inspection appeared before the respondent no.4 to prove the said report. It is thus urged that the order dated 24.03.2023 has been passed on the basis of material which was neither prepared after giving due notice and opportunity of hearing to the petitioner nor after proving the said document as required under law. Learned counsel for petitioner further submits that damages have been awarded against the petitioner to the tune of rupees twenty four lacs. However, perusal of the order dated 24.03.2023 goes to show that there is no discussion in the order with regard to material on the basis of which the prevailing market value of the land in dispute was calculated by respondent no.4 or the period of alleged possession over part of the land in dispute was established against the petitioner. He, therefore, contends that amount of damages awarded against the petitioner is not only illegal, arbitrary and irrational but also illusionary.

Attention of the Court was then invited to the provisions contained in Rule 67(4) of U.P. Revenue Code Rules, 2016 wherein a complete mechanism is provided for calculating the damages to be imposed against the person who is in illegal possession and occupation of Gaon Sabha land. It is submitted by the learned counsel for petitioner that no exercise in terms of aforementioned Rule

was undertaken by respondent no.4 before arriving at the conclusion that petitioner has caused damages to Gaon Sabha property to the tune of rupees twenty four lacs. On the cumulative strength of above, the learned counsel for petitioner contends that order passed by respondent no.4 is manifestly illegal and in excess of jurisdiction. As such, the same is liable to be quashed by this Court. With regard to the order passed by the appellate authority i.e. order dated 27.09.2023, the learned counsel for petitioner submits that the appellate authority has not adverted to the aforesaid inherent illegalities in the order passed by respondent no.4-Tehsildar (Judicial)/Assistant Collector, Tehsil Dadari, District-Gautam Budh Nagar. Attention of the Court was then invited to the memo of appeal filed by the petitioner before the appellate authority, copy of which is appended as Annexure-'5' to the writ petition. With reference to aforesaid document, learned counsel for petitioner submits that though specific objections were raised before the appellate authority with regard to illegality in the order dated 24.03.2023 passed by respondent no.4, however, without considering the same the appellate authority has dismissed the appeal filed by petitioner by simply passing an order of affirmance. It is thus urged that the appellate authority has failed to exercise the jurisdiction vested in him diligently. Consequently, the order passed by the appellate authority cannot be sustained and is therefore liable to be quashed by this Court.

Per contra, the learned Standing Counsel and the learned counsel representing Respondent 5 have opposed the present writ petition. They submit that the dispute relates to Survey Plot No.493 area 1.0250 hectares. The petitioner was found to be in possession and occupation over an area of 0.0200 hectares of the land in dispute i.e. Survey Plot No. 493. The land in dispute is recorded as Pokhri (Talab-water tank) in the revenue records. As such, the land in dispute is a public utility land and therefore covered under Section 77 of the U.P. Revenue Code, 2006. Since the land in dispute is a public utility land therefore, petitioner cannot acquire any right, title or interest over the land in dispute on account of long and uninterrupted possession or under the provisions of Section 67-A of U.P. Revenue Code, 2006. Since the petitioner has failed to establish his rightful ownership over the land in dispute and further failed to disclose as to on which survey plot number the petitioner is in possession and occupation, no illegality has been committed by the authorities below in negating the claim of the petitioner and directing eviction of the petitioner and further awarding damages against the petitioner. As such, the present writ petition is liable to be dismissed. However, the learned Standing Counsel and the learned counsel representing respondent no.5 could not dislodge the submissions urged by the learned counsel for petitioner with regard to the illegality in the amount of damages awarded against the petitioner.

Having heard the learned counsel for petitioner, the learned Standing Counsel for Respondents 1, 2, 3 and 4 and Mr. Sunil Kumar Singh, the learned counsel representing Respondent 5-Land Management Committee and upon perusal of record this Court finds that it is an undisputed fact that the land in dispute is recorded as Pokhari (Talab-water tank). Consequently, the land in dispute is covered under Section 77 of U.P. Revenue Code, 2006 i.e. a public utility land. In view of above, no right, title or interest can accrue in favour of the petitioner on the basis of long and uninterrupted possession over the same or in terms of Section 67-A of U.P. Revenue Code, 2006. Further more, petitioner has failed to establish the survey plot upon which he is in possession and occupation. In view of above, no illegality has been committed by the authorities below in negating the claim of the petitioner that he is not in illegal possession and occupation over Gaon Sabha land. Consequently,

the order of eviction passed against the petitioner by respondent no.4 as affirmed by the appellate authority i.e. respondent no.2 is not liable to be interfered with. However, the Court finds that damages have been awarded against the petitioner in derogation of the mandatory provisions contained in Rule 67(4) U.P. Revenue Code Rules, 2016. There is nothing in the order dated 24.03.2023 to indicate as to on what basis the prevailing market value of the land in dispute was calculated and number of figure of rupees twenty four lacs was arrived at. Learned counsel for petitioner is therefore right in contending before this Court that the amount of damages awarded against the petitioner by respondent 4 is not only illegal, arbitrary and irrational but also illusionary. Consequently, the amount of damages awarded against the petitioner cannot be sustained.

In view of above, the present writ petition succeeds in part and is liable to be partly allowed.

It is accordingly partly allowed.

The impugned order dated 24.03.2023 passed by Respondent 4, Tehsildar (Judicial)/Assistant Collector, Tehsil Dadari, District-Gautam Budh Nagar in Case No. 6067 of 2023 (Land Management Committee Vs. Vinod), under Section 67 of U.P. Revenue Code, 2006 (Annexure 1 to the writ petition) as well as the order dated 27.09.2023 passed by Respondent 2-Additional District Magistrate (Administration), Gautam Budh Nagar in Appeal No. 520 of 2023 (Vinod Vs. NOIDA Industrial Development Authority), under Section 67(5) of U.P. Revenue Code, 2006 (Annexure-2 to the writ petition), are modified to the extent that the order of eviction passed against the petitioner is affirmed. However, the amount of damages awarded to the petitioner by means of above orders is hereby quashed. Execution cost of Rs.4,200/- (four thousand two hundred) shall be deposited by the petitioner.

In the facts and circumstances of the case, there shall be no order as to costs.

Order Date :- 7.2.2024.

Rks.